

DECISIONS · 3 JUL 1998

Order

TYPE	DATE	PARTIES
Court decision	3 Jul 1998	McDonald's France v. Bernard Collorafi

SUMMARY SHEET

Summary order (référé) — First President, Paris Court of Appeal · 3 July 1998

Overview: order made in summary proceedings (référé) by Jean Mazars, acting by delegation of the First President of the Paris Court of Appeal, on the writ of summons of the companies SEBOL, B et O, Les Pins and of Mr Bernard Collorafi against McDonald's France (RG no. 646/98).

Key points

By judgment of 18 May 1998, the Paris Commercial Court had recorded the automatic termination of the lease-management agreements (location-gérance), ordered the eviction subject to a periodic penalty and imposed joint and several monetary orders together with daily occupation indemnities from 2 January 1998, with capitalisation of interest and provisional enforcement. The appellants sought a stay of this provisional enforcement and leave to deposit the sums into escrow; McDonald's asked for rejection and a sum under article 700. Ruling on the basis of article 524 of the new Code of Civil Procedure, the judge:

- declares inadmissible the application for reinstatement in the premises, the eviction having already been carried out;
- stays the provisional enforcement of the monetary orders, considered likely to lead to the companies filing for insolvency;
- sets the hearing for 30 September 1998 before the 16th chamber, section A.

Significance

An interim decision in the appeal proceedings: it suspends the financial enforcement of the judgment of 18 May 1998 without ruling on the merits, preserving the purpose of the franchisees' appeal.

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Source: bernardcollorafi.org/en/documents/summary-order-paris-court-of-appeal-stay-provisional-enforcement-1998/ — Documentary case file of the lawsuit Bernard Collorafi v. McDonald's France (Antibes, 1987–2002). The original scan is authoritative.